

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE J		PAGE OF PAGES 1 10	
2. AMENDMENT/MODIFICATION NO. 0001		3. EFFECTIVE DATE 08-May-2026		4. REQUISITION/PURCHASE REQ. NO. 1301262782-0001		5. PROJECT NO.(If applicable)	
6. ISSUED BY NAVAL UNDERSEA WARFARE CENTER MICHAEL NORMAN OUELLETTE , CODE 0221 CONTRACTS DEPARTMENT 1176 HOWELL STREET, BLDG. 1258 NEWPORT RI 02841-1708		CODE N66604		7. ADMINISTERED BY (If other than item 6) See Item 6			
8. NAME AND ADDRESS OF CONTRACTOR (No., Street, County, State and Zip Code)				X		9A. AMENDMENT OF SOLICITATION NO. N6660426Q0318	
				X		9B. DATED (SEE ITEM 11) 01-May-2026	
						10A. MOD. OF CONTRACT/ORDER NO.	
						10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS							
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offer ☐ is extended, ☒ is not extended. Offer must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended by one of the following methods: (a) By completing Items 8 and 15, and returning <u>1</u> copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.							
12. ACCOUNTING AND APPROPRIATION DATA (If required)							
13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.							
A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.							
B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(B).							
C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:							
D. OTHER (Specify type of modification and authority)							
E. IMPORTANT: Contractor ☐ is not, ☐ is required to sign this document and return _____ copies to the issuing office.							
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.) See Page 2.							
Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.							
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
				TEL: _____ EMAIL: _____			
15B. CONTRACTOR/OFFEROR _____ (Signature of person authorized to sign)		15C. DATE SIGNED		16B. UNITED STATES OF AMERICA BY _____ (Signature of Contracting Officer)		16C. DATE SIGNED 08-May-2026	

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

SECTION A - SOLICITATION/CONTRACT FORM

The following have been modified:

GENERAL INFORMATION

DISTRIBUTION: FILE, KR, NUWC Code 02, Code 10/E. Gilmore

NUWC DIVNPT PID Number: N66604-26-SIMACQ-NPT-10-0201

NUWC DIVNPT POC: Michael Ouellette; Email: Michael.n.ouellette.civ@us.navy.mil

The purpose of this amendment is to:

1. Provide answers to RFI 001 as seen below.
2. Revise Statement of Work section 4.0 as seen below.

RFI 001

- RFI A-1: Section 1.1 references 81 buildings with a base map to be provided after award. Will the Navy provide the building list, addresses, floor information, and any access restrictions prior to bid submission, even in summary form?
 - Answer: Per Section 1.1 and 2.0 of the Statement of Work (SOW), a base map will be provided after award. A comprehensive building list, specific addresses, and floor information will not be provided prior to award to ensure fairness. Offerors should base their proposals on providing services to "not greater than eighty-one (81) buildings."
- RFI A-2: Is there an incumbent contractor for water vending/dispensing services at NUWC DIVNPT? If so, can the Navy share the predecessor contract number, contractor name, contract value, and any historical sales data (e.g., 5-gallon jugs delivered per month, number of active subscriptions)?
 - Answer: The Government will not be providing incumbent contractor information or historical sales data as the time between the last time this requirement was fulfilled and the time of solicitation renders it meaningless for this competition. Offerors are to propose based on the requirements outlined in the solicitation.
- RFI A-3: What is the Government's estimate, or historical actual, of the number of active water-pool subscriptions on day one of the contract and at steady state? Section 4 says 'not greater than 81 buildings,' which is a ceiling, not a floor.
 - Answer: The Government's estimate is a maximum of 81 subscriptions, corresponding to the number of buildings, as stated in Section 4.0 of the SOW. This is a ceiling, not a floor. The actual number of subscriptions will be determined by user demand.
- RFI A-4: Section 4.2.1 references base passes, security clearances, and AD 3.1 (NUWC DIVNPT SECMAN). Can the Navy describe the base-access process for delivery drivers and the typical lead time for visitor passes vs. recurring vendor passes? Are there fees? Is escort required, or are drivers allowed to deliver unescorted with proper credentials as most of the NUWC badges issued will state "Exterior work only" unless the Navy plans to provide a few slots for delivery drivers to obtain a Tier 1 FAD NAVSEA badge. Please clarify.
 - Answer: Base access procedures are governed by NUWC DIVNPT Security Manual (SECMAN), referenced as AD 3.1. As per SOW Section 4.2.1, the contractor is responsible for obtaining all necessary passes and security clearances. Specific lead times, fees, and escort requirements are detailed in the SECMAN and are the responsibility of the contractor to ascertain and comply with.
- RFI A-5: What hours are deliveries permitted on NUWC DIVNPT and NAVSTA Newport? Are there any restricted access periods (drills, security events, weather closures) that would affect 2-business-day stocking response times under Section 4.7?

- Answer: Delivery hours and access restrictions are subject to NUWCDIVNPT operational requirements and are managed by base security. The contractor is expected to coordinate with the Technical Point of Contact (TPOC), to be named at award, to schedule deliveries and navigate any restricted periods. The two-business-day stocking response time required by SOW Section 4.7.1 is inclusive of any such access restrictions.

B. Pricing, Remittance & Gross Sales Definition

- RFI B-1: Section 4.0 defines gross sales as 'the total amount of money paid by the water pool managers in accordance with AD 3.2.' Please confirm whether the following are included in or excluded from 'gross sales' for purposes of calculating the remittance percentage: (a) delivery fees, (b) bottle deposits and bottle deposit refunds, (c) cooler rental or purchase fees, (d) cleaning service fees, (e) sales taxes (if any), (f) credit card surcharges, (g) late fees.
 - Answer: Per SOW Section 4.0, "gross sales" are defined as "the total amount of money paid by the water pool managers." The section further states that gross sales amounts shall not be reduced by any taxes, duties, expenses, or costs incurred by the contractor. Therefore, all fees charged by the contractor to the end-user are included in the gross sales calculation.
- RFI B-2: Section 4.0 states payments shall be made 'within 14 days of drop off' and also that 'Deposits shall be made no later than the last day of the third month of the contract, and every three months thereafter.' These two statements appear to conflict. Please clarify whether remittance is (a) 14 days after each delivery, (b) quarterly, or (c) something else.
 - Answer: The solicitation will be amended to clarify. Please see section 4.0 for revision.
- RFI B-3: Section 4.1 requires the vend price for a 5-gallon jug to be 'in line with the commercial standard market pricing given to another entity of similar size and scope.' How will the Government measure or audit compliance with this clause, and against what benchmark? Will the Government publish or provide a target price band?
 - Answer: Per SOW Section 4.1.1, the Government will assess whether pricing is "in line with the commercial standard market pricing" by comparing the proposed price to similar services for entities of a similar size and scope. The Government will not publish a target price band.
- RFI B-4: Section 4.0 prohibits adjusting gross sales for 'increases in the cost of supplies, increases in the cost of vending products, or any other increase of any operating expenses.' Over a 5-year period of performance, will the Government consider any economic price adjustment mechanism, or is the contractor expected to absorb all input cost inflation including fuel, labor (52.222-41 wage determinations), and bottled water costs?
 - Answer: As stated in SOW Section 4.0, the contract is a firm-fixed-price arrangement. The contractor is expected to absorb all input cost inflation. No economic price adjustment mechanism will be considered.
- RFI B-5: Is there a minimum acceptable remittance percentage below which the Government will not consider a proposal? Conversely, is there a percentage above which the Government would view the bid as unrealistically high (i.e., trigger a price-realism analysis under FAR 15.404-1)?
 - Answer: The Government will not establish a minimum or maximum acceptable remittance percentage. Proposals will be evaluated for price reasonableness in accordance with FAR 15.404-1.
- RFI B-6: Section M references FAR 15.404-1(b) for price evaluation. Will the Government provide its Independent Government Cost Estimate (IGCE) basis or describe the price-realism methodology that will be applied to the % remittance bid?
 - Answer: The Government will not provide its Independent Government Cost Estimate (IGCE). The price realism methodology will be conducted in accordance with FAR 15.404-1(b), as stated in Section M of the solicitation.
- RFI B-7: How will water pool managers actually pay? Credit card, ACH, payroll deduction, internal CMWR account transfer, billed invoice? Who issues the invoices — the contractor or CMWR? Does CMWR pre-fund subscriptions and disburse to the contractor, or does the contractor bill 81 separate water pool managers?

- Answer: The contractor's proposed subscription process, to be incorporated as AD 3.2, must detail the payment methods and invoicing procedures. The contractor is responsible for billing and collection from the individual water pool managers.
- RFI B-8: CMWR is a Non-Appropriated Fund Instrumentality. Please confirm whether sales of water/services to CMWR (or to water pool managers via CMWR) are exempt from Rhode Island state sales tax and any local taxes. If exempt, will CMWR provide the contractor with the appropriate tax-exemption certificate at award?
 - Answer: As a Non-Appropriated Fund Instrumentality (NAFI), sales to CMWR are generally exempt from state and local taxes. Upon award, the Government will provide the appropriate tax-exemption certificate.

C. Equipment Specifications & Installation

- RFI C-1: Section 4.1.5 requires water dispensing machines that are 'firmly anchored or secured to the floor or wall at the time of installation' using 'an industry standard stabilizing bracket.' Please clarify: (a) is the contractor authorized to drill into Government floors and walls; (b) does the Navy require specific anchor types or fastener engineering (e.g., due to seismic, blast, or LEED-related criteria); (c) will the Government identify approved anchoring locations in each building, or is the contractor responsible for siting; (d) does the Government accept tip-prevention straps/tethers in lieu of through-floor anchoring for free-standing 5-gallon jug coolers?
 - Answer: Per SOW Section 4.1.5, dispensers must be "firmly anchored or secured." The contractor must propose a compliant solution. This may or may not require drilling, which must be approved by the Government facility manager and TPOC for each location. The contractor is responsible for proposing industry-standard, safe anchoring methods and for the proper siting of the machines. The Government may consider tip-prevention straps on a case-by-case basis if they meet the stability requirement.
- RFI C-2: Section 4.1.5 requires hot/cold options. Please confirm whether room-temperature-only or cold-only models are acceptable in any locations (some end users prefer them and they reduce energy costs and tip-over risk).
 - Answer: SOW Section 4.1.5 requires "hot/cold options." Models that do not provide both hot and cold water are not acceptable.
- RFI C-3: Will the buildings provide a standard 120V receptacle in each location, with sufficient capacity for the cooler? Are GFCI receptacles required by Navy or local code in the dispensing locations?
 - Answer: The Government will provide access to standard 120V receptacles. The contractor is responsible for ensuring their equipment is compatible and for complying with any local codes regarding GFCI receptacles.
- RFI C-4: Section 4.1 references 'two locations on the second floor of their respective buildings.' Will the Navy identify those buildings prior to bid? Are freight elevators available, and during what hours?
 - Answer: SOW Section 4.1.1 states there are two locations on the second floor. The specific buildings will not be identified prior to bid. Offerors should assume that freight elevators may not always be available, and plan accordingly.
- RFI C-5: Section 4.3 requires that machines be kept clean and sanitary 'to the satisfaction of ... the cognizant medical officer.' Who is the cognizant medical officer for this contract, and what specific standards (NSF, FDA, IBWA, NAVMED) will be applied during inspections?
 - Answer: The cognizant medical officer will be designated by the NUWCDIVNPT Safety and Environmental Office upon award. Inspections will be based on standard NAVMED, FDA, and NSF guidelines for potable water dispensing.
- RFI C-6: Are there any restricted areas (SCIFs, classified spaces, secure labs) where the contractor's personnel may not enter? If so, how will deliveries to those areas be handled?
 - Answer: Deliveries to restricted areas will be handled on a case-by-case basis, coordinated through the TPOC. This may involve escorts or delivery to a designated consolidation point. The contractor's personnel must meet all security requirements as per SOW Section 4.2.1.

D. Service Levels, Maintenance & Reporting

- RFI D-1: Section 4.3 requires monthly preventative maintenance. Will a routine cleaning visit (e.g., the manufacturer-recommended cleaning every 90 days) plus a brief monthly visual inspection satisfy this requirement, or is a separate documented monthly PM visit required for each of up to 81 sites?
 - Answer: SOW Section 4.3 requires "monthly preventative maintenance." A routine cleaning and visual inspection visit will satisfy this requirement, provided it is documented for each of the up to 81 sites.
- RFI D-2: Section 4.3 requires 1-business-day response to service calls and 5-working-day replacement of damaged parts/machines. What is the Government's definition of 'response' (on-site, phone diagnosis, ticket acknowledgment)? What is the basis for measuring against the SLA — the call timestamp on the toll-free number, an email, or both?
 - Answer: Per SOW Section 4.3, "response" for service calls is defined as the contractor taking positive action to diagnose and address the issue, which can be initiated via phone or email. The SLA is measured from the timestamp of the initial service call or email to the contractor's provided point of contact.
- RFI D-3: Section 4.7 requires response to empty machines or empty product lines within 2 business days. If a water pool coordinator under-orders or fails to request replenishment, is that contractor failure attributable under this clause, or is the SLA tied only to delivery fulfillment after a request is received?
 - Answer: The SLA for stocking machines in SOW Section 4.7 is tied to a "service call" or "request from a...coordinator." The contractor is not responsible for under-ordering by a coordinator but is responsible for responding within two business days once a request for replenishment is received.
- RFI D-4: Section 4.4.1 requires a monthly report 'identifying the month's deliveries and gross sales for each machine.' Does the Government require a specific report format, system of record, or template? Will the report be submitted to CMWR, the PCO, or both?
 - Answer: SOW Section 4.4.1 requires a monthly report. The Government does not provide a specific template. The contractor shall propose a report format that identifies monthly deliveries and gross sales for each machine. The report shall be submitted to both the CMWR and the Procuring Contracting Officer (PCO).
- RFI D-5: Section 4.1.2 allows CMWR to require relocation of machines at the contractor's cost within 15 days of notification. Is there an expected or capped frequency of relocations per year? Is CMWR willing to discuss a not-to-exceed number of relocations per machine per year, with relocations beyond that handled as a billable change?
 - Answer: The frequency of relocations is not capped. As per SOW Section 4.1.2, CMWR may require relocation at the contractor's cost. Offerors should factor this possibility into their pricing.

E. Subscription Process (AD 3.2)

- RFI E-1: Section L Volume III states the offeror's subscription process will be incorporated as AD 3.2, but also that 'in the event of a conflict between the Government terms and conditions and that of an offeror's subscription process, the Government's terms and conditions will Govern.' Please clarify whether the Government will allow the contractor to include limited consumer-facing terms (e.g., subscription cancellation notice period, payment method requirements, late-payment fees) that supplement, but do not contradict, the Government clauses.
 - Answer: As stated in Section L, Volume III of the solicitation, "in the event of a conflict between the Government terms and conditions and that of an offeror's subscription process, the Government's terms and conditions will Govern." Supplementary consumer-facing terms are permissible only if they do not contradict Government clauses.
- RFI E-2: Will the Government review and approve the draft subscription process during evaluation, or is final AD 3.2 negotiated post-award? If post-award, does the Government commit to a not-later-than date for finalization so that the 45-day installation clock under Section 4.6.1 has a defined start point?

- Answer: The Government will review the draft subscription process during evaluation. The final process will be incorporated into the contract at award (AD 3.2), establishing the start of the 45-day installation clock under SOW Section 4.6.1.
- RFI E-3: May the contractor charge water pool managers a one-time enrollment or setup fee, a delivery fee, or recurring service fees, in addition to the per-jug price? If yes, are those fees included in 'gross sales' for the remittance calculation? (See also RFI B-1.)
 - Answer: The contractor may propose additional fees (e.g., enrollment, delivery). As per the response to RFI B-1, all fees charged to the end-user are considered part of "gross sales" for the purpose of calculating the remittance.

F. Contract Administration

- RFI F-1: Section H requires the Contracting Officer's and CMWR/FSB's prior written approval for subcontracting. Holland House intends to use Primo Brands Corporation as its supplier and service subcontractor. Will the Government accept identification of Primo with the proposal as constituting prior approval, or is a separate consent-to-subcontract action required post-award?
 - Answer: Identification of Primo as the intended subcontractor in the proposal is required. However, per Section H, this does not constitute prior approval. A separate, formal consent-to-subcontract action will be required post-award.
- RFI F-2: Clause C-228-H002 specifies minimum insurance amounts. Please confirm: (a) whether the U.S. Government and the NUWCDIVNPT CMWR/FSB are required to be named as Additional Insureds; (b) whether subcontractor (Primo) insurance is acceptable for any of the required coverages, or whether the prime contractor must carry all of them; (c) whether a waiver of subrogation is required.
 - Answer: Per clause C-228-H002, the U.S. Government and NUWCDIVNPT CMWR/FSB must be named as Additional Insureds. The prime contractor is required to carry all required insurance coverages; subcontractor insurance is not a substitute. A waiver of subrogation is required.
- RFI F-3: Clause 52.222-41 Service Contract Labor Standards is incorporated by reference. Which Wage Determination applies to this contract, and what labor categories does the Government anticipate (e.g., Beverage Delivery Driver, Service Technician)?
 - Answer: The applicable Service Contract Labor Standards Wage Determination will be incorporated at the time of award. The Government anticipates labor categories including, but not limited to, "Beverage Delivery Driver" and "Service Technician."
- RFI F-4: Attachment 1 lists Non-Appropriated Fund clauses. Are there any NAF-specific clauses that the contractor must flow down to subcontractors (Primo)? Specifically, does the NAF Termination for Convenience clause apply, and on what basis would the Government calculate termination settlement?
 - Answer: The contractor is responsible for flowing down all applicable clauses to its subcontractors as required by the terms of the prime contract, including the NAF Termination for Convenience clause. The basis for any termination settlement calculation will be in accordance with the procedures outlined in that clause.
- RFI F-5: Section M states 'the Government intends to award without discussions.' If the Government identifies a clarification it would like, will it use FAR 15.306(a) clarifications (no proposal revision) or FAR 15.306(d) discussions (proposal revisions allowed)? Will offerors be notified before a competitive range determination, if any?
 - Answer: As stated in Section M of the solicitation, "the Government intends to award a contract without discussions." The Government reserves the right to hold discussions if it is in its best interest. The determination of whether to use clarifications under FAR 15.306(a) or to enter into discussions under FAR 15.306(d) is at the discretion of the Contracting Officer.

All other solicitation terms and conditions remain unchanged.

SECTION C - DESCRIPTIONS AND SPECIFICATIONS

The following have been modified:

STATEMENT OF WORK

NUWCDIVNPT CMWR BEVERAGE VENDING MACHINES PERFORMANCE BASED WORK

1.0 BACK GROUND

The Naval Undersea Warfare Center Division, Newport (NUWCDIVNPT) is the Navy's full-spectrum research, development, test and evaluation, engineering, and fleet support center for submarine warfare systems and many other systems associated with the undersea battle space. NUWCDIVNPT annually has over eight thousand employees, contractors and visitors accessing our site and the NUWCDIVNPT Command Moral Welfare and Recreation (CMWR) require a water pool capability services for the benefit of all at NUWCDIVNPT.

1.1 Place of performance

Work/services will be performed at NUWCDIVNPT and Naval Station Newport (NAVSTA) buildings totaling 81 (Base map to be provided after award)

1.2 Authorized Users

NUWCDIVNPT Water Pool Managers

2.0 SCOPE

SUPPLIES/SERVICES AND PRICES

Upon receipt of request from a building/floor water pool coordinator in accordance with the Contractor's identified subscription process, Applicable Document 3.2, the contractor shall provide water coolers to not greater than eighty-one (81) buildings (see base map to be provided after award) situated on the NUWCDIVNPT and NAVSTA premises.

3.0 APPLICABLE DOCUMENTS (AD)

	Name:	Dated:
3.1	NUWCDIVNPT SECURITY MANUAL (SECMAN)	10/20/19
3.2	Contractor's process for receipt and fulfillment of subscriptions from water pool managers	TBD (at the time of award)

4.0 Technical Requirements

Upon receipt of request from a building/floor water pool coordinator in accordance with the Contractor's identified subscription process, Applicable Document 3.2, the contractor shall provide water machines located in not greater than eighty-one (81) buildings situated on the NUWCDIVNPT premises. The Contractor shall not provide services unless/until there is an active subscription in an identified area (bldg and floor).

The contractor agrees to remit to the NUWCDIVNPT's Civilian Morale Welfare and Recreation Food Services Board (CMWR/FSB) a flat fixed percentage of: [% TO BE FILLED IN UPON AWARD] percent of gross sales per month in exchange for providing water dispensing machines to NUWCDIVNPT. For the purpose of this contract, gross sales are defined as the total amount of money paid by the water pool managers in accordance with AD 3.2. The gross sales amounts shall not be reduced or adjusted due to any taxes, duties, direct or indirect expenses, increases in the cost of supplies, increases in the cost of vending products, or any other increase of any operating expenses the contractor may incur during the term of the contract.

For purposes of this contract "water dispensing machine" refers to machines that dispense non-bottled water.

The contractor shall make payments within 14 days of drop off. Payments shall be directly deposited into a bank account controlled by the CMWR (details to provide upon award). The contractor shall send a separate letter to the CMWR on the same date as the payment is made, indicating date and amount of the deposit. Regardless of when the water dispensing machines are installed by the contractor, the amount is due to CMWR within 14 days of machine and/or bottle drop off. Failure to make a payment will constitute a material breach and can be grounds for immediate contract termination..

4.1 SPECIFICATION

- 4.1.1 Upon receipt of request from a building/floor water pool coordinator in accordance with the Contractor's identified subscription process, Applicable Document 3.2, furnish and install water dispensing machines on the NUWCDIVNPT in the locations agreed upon with the water pool managers within the areas identified in Section

With the exception of two locations, all sites are either on the first floor or accessible by elevator. The two exceptions are on the second floor of their respective buildings. The vend price for a 5-gallon jugs of water shall be in line with the commercial standard market pricing given to another entity of similar size and scope as the active water pool manager supported areas within NUWCDIVNPT at any given time.

- 4.1.2 NUWCDIVNPT's CMWR shall have the right to require the contractor to relocate any of the said water machines to a different area or building. If relocation is required, it is the contractor's responsibility to relocate the water dispensing machines at their own cost and expense within fifteen (15) days of formal notification.

- 4.1.3 The contractor shall take payment and track subscriptions in accordance with AD 3.2.

- 4.1.4 The contractor shall obtain all permits; give all necessary notices; pay all license fees; comply with all municipal, district, state and federal laws, rules, ordinances, regulations, and any publications by the Department of War relating to public health or business carried out under this Contract.

The contractor shall assume complete and sole liability for all federal, state and local taxes applicable to the property, income and transactions or this contract. The contractor is responsible for all trade fixtures, tools or the trade, equipment and any other such items or supplies required for performance of this contract. None of the responsibilities or expenses will in any way reduce the monthly remittance agreed to in the contract.

- 4.1.5 The contractor shall provide water dispensing machines that are equipped with hot/cold options and provide thermal overload protection. In addition, the contractor shall ensure that all drink machines are firmly anchored or secured to the floor or wall at the time of installation. An industry standard stabilizing bracket shall be used to assure that the machine is secured, preventing water dispensing machine tip overs due to misuse, abuse or acts of God. Safety decals shall be prominently displayed on the machine warning of hazards of tipping or rocking the machine. The contractor shall ensure that all water dispensing machines meet all Federal, state, local, Navy and DOD fire and safety guidelines.

4.2 DELIVERIES OR PERFORMANCE

- 4.2.1 The contractor shall furnish a sufficient number of trained employees for the efficient performance of this contract. The vendor personnel shall meet security standards in accordance with AD 3.1 and all applicable regulations, and shall obtain installation access, passes and permits and security clearances as applicable.

- 4.2.2 The contractor shall not employ any person for work on this contract if such employee is identified to the Contractor by the Contracting Officer as a potential threat to the health, safety, security, general wellbeing or operational mission of the Government installation and its population. The contractor shall remove from the performance of this contract at the request of the Contracting Officer, any agent or employee of the contractor if, in the opinion of the Contracting Officer or their authorized representative, the conduct of such person, while on or about the premises covered by this contract, in any way interferes with the proper order and discipline of the applicable military

installations. This identification will not excuse the Contractor from performing the contract requirements.

4.3 MAINTENANCE OF MACHINES

The contractor shall at all times maintain the water dispensing machines, including all meters and special attachment, in proper mechanical working order and make all necessary repairs and replacement of parts. The contractor shall also keep the vending machines in a clean, attractive and sanitary condition to the satisfaction of the NUWCDIVNPT's FSB and the cognizant medical officer. Replacement of any damaged parts and/or machines shall be performed within five (5) working days of notification. In addition, the contractor shall perform monthly preventative maintenance on the equipment in order to keep the machines in good working order. All service calls shall be responded to within one (1) business day of notification. Upon award, the contractor shall provide a point of contact and a toll free service call number.

4.4 COLLECTION OF SALES RECEIPTS

- 4.4.1 The contractor shall be responsible for the collection of all subscription payments from water pool managers in accordance with AD 3.2. The contractor shall provide a monthly report identifying the month's deliveries and gross sales for each machine.

4.5. REFUNDS

RESERVED.

4.6 PERIOD OF PERFORMANCE AND CONTRACT EXPIRATION

- 4.6.1 The contractor shall have all machines installed and operational no later than 45 days after receipt of subscription request from the water pool manager and continue for a period of 60 months unless sooner terminated as provided herein. The contractor shall notify the water pool manager and Contracting officer when the actual installation is complete. The period of performance of this contract shall not exceed 5 years.
- 4.6.2 Upon expiration of this contract or upon termination as provided herein, the contractor's shall promptly remove contractor owned property from the NUWCDIVNPT premises. Upon failure to do so, the NUWCDIVNPT FSB may cause property to be removed at the contractor's expense.
- 4.6.3 In the event of expiration of contractor or termination, any monies due and payable to the NUWCDIVNPT FSB from the contractor as a result of this contract remain due and payable.
- 4.6.4 Upon termination or expiration of this contract, the contractor shall promptly settle its account with the NUWCDIVNPT CMWR, including payment in full of all amounts due, clean and leave the premises in as good order and condition as when received (damage due to acts of God or the US Government, and ordinary wear and tear excepted), and surrender base passes and decals.

4.7 STOCKING OF THE MACHINES

- 4.7.1 The contractor shall at all times keep the machines stocked with water. The contractor shall respond to all service calls regarding empty machines or an empty product line(s) and take corrective action within two (2) business days of notification. Upon receipt of request from a building/floor water pool coordinator in accordance with the Contractor's identified subscription process, Applicable Document 3.2, the contractor shall provide a point of contact and a toll free number.

(End of Summary of Changes)

